

FILED BY: RAMOS VENTURA, MARCOS

TENTATIVE RULING:

Background

Plaintiff filed a Motion to Strike Defendant's Answer, on November 19, 2025. The Motion is unopposed, but there is no proof that Defendant has been served.

Disposition

Motion will be continued to 3/10/26 9a.m. for Plaintiff to serve notice of motion on Defendant.

**7. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
HEARING ON DEMURRER TO: TO FIRST AMENDED COMPLAINT BY DEFT ON 9-29-25
FILED BY: ATWATER, STEPHEN W
*TENTATIVE RULING:***

Background

Defendant filed a Demurrer to Plaintiff's first amended complaint on 9/29/25, with a Memo of Points and Authorities.

Plaintiff filed a Response and requested leave to amend should the Court sustain the Demurrer to any causes of Action.

Analysis

A party may demur if "[T]he pleading does not state facts sufficient to constitute a cause of action." Section 430.10(e) of the Code of Civil Procedure. The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39

Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. Leave to amend can be granted for a plaintiff to allege an omitted cause of action, based on the alleged facts. *Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 216. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Ordinary negligence requires a showing that a breach of duty has occurred that is owed to the public generally, rather than a professional duty owed by a health care provider to his patients. *Gutierrez v. Tostado* (2025) 18 Cal.5th 222, 229).

An enforceable contract requires that a promise must be sufficiently definitive so that a court can “ascertain the parties’ obligations and to determine whether those obligations have been performed or breached.” *Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209.

A cause of action for Intentional Infliction of Emotional Distress requires extreme and outrageous conduct. *McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1515. Such conduct exists when “[I]t is so extreme as to exceed all bounds of that usually tolerated in a civilized community.” *Id.*

Finally, with a cause of action for Fraudulent Concealment, without a fiduciary relationship between Plaintiff and Defendant, Plaintiff must allege that Defendant knew of material facts, “[A]nd also (knew) that these facts (were) neither known nor readily accessible to the other party.” *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 749-750. The plaintiff must have sustained damages as a result of the concealment. *Id.* at 748. And the facts for this cause of action must be pled with specificity. *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.

In the instant matter, the facts alleged for the First Cause of Action sufficiently state a case for Professional Negligence. To the extent that Plaintiff, by virtue of checking the box for Negligence, intended to allege a Cause of Action for Ordinary or General Negligence, demurrer to that cause of action is sustained without leave to amend.

For the Second Cause of Action, the court is not aware that “Misdiagnosis,” is a proper cause of action. Moreover, the facts alleged are virtually identical to those in the First

Cause of Action. The court would sustain the Demurrer to this Cause of Action, and deny leave to amend.

For the Third Cause of Action, the allegations – that Defendant did not thoroughly read the diagnostic report and did not provide the appropriate level of treatment – do not sufficiently state what care Defendant agreed to provide. The court further finds that, in all probability, amendment would be futile. There is no suggestion, based on the alleged facts, that anything more definitive with respect to an agreement on care exists. Thus, the court would deny leave to amend.

For the Fourth Cause of Action, the allegations that Defendant: failed to identify the second diagnosis of Large Cell Lymphoma, two times, in the Histopathology Report; failed to properly apologize to the Plaintiff; Attempted to shift the blame to Plaintiff in a card of sympathy; and made a casual comment about his ability to perform surgery, can, in no way, rise to the level of extreme and outrageous conduct. It is very unlikely that amendment could cure this defect. The court would deny leave to amend.

Finally, for the Fifth Cause of Action, even assuming that Defendant did actively conceal the diagnosis of Small Cell Lymphoma in the medical records, he had already given this diagnosis, verbally, to Plaintiff. Amendment cannot cure this defect. The court would deny leave to amend.

Disposition

Defendant's Demurrer is sustained to all Causes of Action except the First Cause of Action.

To the extent that Plaintiff is seeking a Cause of Action for Ordinary Negligence, the court sustains the Defendant's Demurrer to this as well.

The court denies leave to Plaintiff to amend the Complaint.

Plaintiff to file Amended Complaint within 10 court days of this Order.

Defendant to draw and file Order.

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